

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: Claire LeMessurier) **Docket Nos. 2024-58**
License no. 068.0000565) **2024-59**

Pre-Charge Voluntary Surrender of License Stipulation and Order

The matter captioned above arises from two complaints made to the Office of Professional Regulation. The parties to the case hereby agree to an expedited resolution of the matter as follows:

Alleged Facts and Violations

1. Respondent is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0000565. This license was first issued October 18, 2011 and expires on January 31, 2025.

Child 1

2. Between early 2016 and late 2018, Respondent engaged in play therapy with a child from the time he was two years, ten months old to when he was five years, seven months old ("Child 1").
3. Early in the therapeutic relationship, Respondent aligned herself with Child 1's mother ("Mother 1"), who was convinced her then-husband ("Father 1") was sexually abusing Child 1. Based on reporting from Mother 1 and observing Child 1's play, Respondent concluded that Father 1 was sexually abusing Child 1.
4. Of approximately 120 appointments conducted by Respondent, Mother 1 attended all but approximately five appointments. Father 1 was present for five to ten appointments.
5. While Respondent's notes and written observations characterize interactions between Father 1 and Child 1 as appropriate, attentive, nurturing, engaged and loving, Respondent concluded that Father 1 was: "super tricky," that he had traits similar to perpetrators of sexual assaults, that he was a dangerous person, that he was vindictive, manipulative, secretive and that he exhibited many red flags. Respondent believed Father 1 had a personality disorder, even though Respondent did not evaluate, assess or have a treatment relationship with Father 1.
6. Respondent's conclusions about Father 1 were based on Mother 1's reports to Respondent about Father 1 and behaviors of Child 1 that only Mother 1 witnessed and reported to Respondent.

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7. Respondent attributed truthfulness to Mother 1's reports. Respondent concluded that Mother 1 had no mental illness. Respondent did not evaluate, assess or have a treatment relationship with Mother 1.
8. Respondent's work with Child 1 appeared focused on gathering evidence from Child 1's play that supported the conclusion that Father 1 sexually abused Child 1.
9. Throughout the relevant time, Father 1 denied having abused Child 1. Ultimately, Mother 1 agreed to Father 1 having primary legal and physical custody of Child 1. Mother 1 further acknowledged that her concerns about sexual abuse were thoroughly evaluated by law enforcement and other professionals involved "who have concluded that there is no evidence to support those beliefs."
10. Respondent took on multiple roles in her work with Child 1, including the child's therapist, evidence gathering to support Mother 1's belief that Father 1 sexually abused the child, and advocate in court proceedings for the conclusion that abuse occurred.
11. From the outset of her treatment relationship with Child 1, Respondent appeared heavily biased in favor of supporting Mother 1's beliefs about Father 1.
12. For approximately ten billing dates during the time Respondent was Child 1's therapist, Respondent had no notes of the therapy session.
13. Despite characterizing the situation with Child 1 as very difficult and complicated, Respondent did not have or seek supervision during the time she worked with Child 1.

Child 2

14. Between 2019 and 2021, Respondent engaged in play therapy with a child from the time he was four years old to when he was six years old ("Child 2").
15. Early in the therapeutic relationship, Respondent aligned herself with Child 2's mother ("Mother 2"), also taking on additional roles of providing parent therapy to Mother 2 and individual therapy to Mother 2.
16. Mother 2 reported to Respondent that she experienced marital rape, domestic violence and physical abuse regularly at the hands of Child 2's father ("Father 2"). Mother 2 also reported to Respondent that Child 2 had described sexual abuse acts to Mother 2 that his father had done to him.
17. Respondent never met with Father 2, despite generally having a practice of reaching out to both parents to meet with them when providing play therapy services to a child. Based on Mother 2's reports, Respondent was concerned for her safety and did not want to meet with Father 2. Respondent also believed from her experience that meeting with perpetrators was not helpful, as they were deceptive and tried to "trick" her.
18. On more than one occasion, while engaging in play therapy with Respondent and with his mother present, Child 2 told Respondent that his father engaged in acts with him which,

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if true, would have been sexual abuse. Child 2 also told Respondent fantastical things his father did which could not have been true.

19. Respondent wrote multiple, unsolicited letters directly to the judge in the custody case between Mother 2 and Father 2 attempting to stop court-ordered visitation between Child 2 and Father 2. In one such letter in October 2019, Respondent urged the judge stop the forensic evaluation of the child by a neutral court-appointed evaluator. The same evaluator had also done an evaluation in the court case involving custody of Child 1 earlier in 2019 and had disagreed with Respondent's conclusions in that case. In another letter she sent directly to the judge in 2020, Respondent asked the judge to postpone visitation until the court-appointed neutral forensic evaluator had completed his report in the case.
20. Respondent also sent an unsolicited letter to the court-appointed evaluator, stating her belief that Father 2 sexually abused Child 2 and her opposition to allowing his visitation with his son. Respondent asked the forensic evaluator to recommend termination of Father 2's parental rights to the court.
21. Respondent wrote an unsolicited email for Child 2's teacher and provided it to Mother 2, instructing her to email it to the teacher if Mother 2 wanted. The email Respondent wrote to Child 2's teacher stated that when Child 2 was three years old, "he was brutally raped by his father...this included oral and anal rape, and physical and emotional abuse."
22. Respondent did not have or seek supervision during the time she provided services to Child 2 and Mother 2.
23. Respondent communicated and/or attended intake sessions with visitation centers that were being considered to provide supervised visitation for Child 2 and Father 2 as part of a court-ordered visitation. The visitation centers refused to provide supervision services.
24. Throughout the relevant time, Father 2 denied having abused Child 2. The court did not make any finding or determination that Father 2 abused Child 2 and ordered a reunification process.
25. Between September 2019 and February 2021, Respondent billed Medicaid for over ninety sessions for Child 2 and Mother 2 for which Respondent had no notes.
26. Respondent's actions constitutes grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. § 129a(b)(2) ("Failure to conform to essential standards of acceptable and prevailing practice"); 3 V.S.A. § 129a(a)(26) ("Failure to maintain professional boundaries"); 26 V.S.A. § 3271(a)(6) ("Entering into an additional relationship with a client...that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations").

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Understandings

27. This Stipulation is neither an admission of liability or the alleged facts by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Pre-Charge Voluntary Surrender of License Stipulation pursuant to these Understandings and the Order below.
28. Respondent has ceased practicing as a licensed clinical mental health counselor and desires to voluntarily surrender her LCMHC license.
29. Respondent understands that this Pre-Charge Voluntary Surrender of License Stipulation and Order will be reviewed and the Board may accept or reject the Order set forth below. If the Board rejects all or any portion of the Order, then this entire document shall be null and void.
30. Respondent specifically waives any claim that any disclosures made to the Board during its review of this agreement prejudice Respondent's right to a fair and impartial hearing if this agreement is not accepted and proceeds to a merits hearing before the same Board.
31. Respondent has read this document fully and agrees it contains the entire agreement between the parties.
32. This Pre-Charge Voluntary Surrender of License Stipulation and Order is entered into voluntarily by Respondent after the opportunity to consult with legal counsel. Respondent has not been coerced into signing this Pre-Charge Voluntary Surrender of License Stipulation and Order.
33. Respondent voluntarily waives the right to a contested hearing and waives any right to appeal this Pre-Charge Voluntary Surrender of License Stipulation and Order.
34. Respondent is of sound mind and is not under the influence of drugs or alcohol when signing this Pre-Charge Voluntary Surrender of License Stipulation and Order.
35. Respondent agrees that the Board may enter the Acceptance of Voluntary Surrender and Order set forth below, that it will be a binding Order upon Respondent, and will be public.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health Practitioners hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of her Licensed Clinical Mental Health Counselor License.
- B. If Respondent seeks to obtain or renew a license to practice as a LCMHC, or in any other licensed mental health profession in the State of Vermont, this Order shall constitute conclusive grounds to deny her application, notwithstanding any other provision of law.

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C. Respondent shall not be eligible for reinstatement.

D. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be **CONDITIONED** pursuant to whatever terms are found to be reasonable at the time of Respondent's application for licensure, taking into account the facts above.

E. This Stipulated Voluntary Surrender of License and Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

F. This Stipulated Voluntary Surrender of License and Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

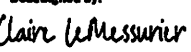
AGREED TO:

Dated: 4/8/2024

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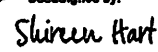
By: 
Jennifer B. Colin
Prosecuting Attorney

Dated: 4/6/2024

RESPONDENT
By: 
Claire LeMessurier

APPROVED AS TO FORM:

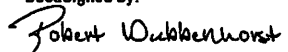
COUNSEL FOR RESPONDENT

By: 
Shireen Hart, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 4/18/24

By: 
Chairperson

Date of Entry: 4/19/24

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